

Judgment Sheet

JUDICIAL DEPARTMENT

M/s. Firzouq Tanneries (Pvt.) Limited etc. Versus United Bank Limited

Date of Decision: 16.05.2018

Respondent by: Mr. Wasif Majeed, Advocate.

2. The facts succinctly revealed from the case are that the Respondent filed a suit for recovery of Rs.64,976,823.00 against the Appellants alongwith cost of suit and costs of funds from the date of default till realization or payment. The Appellants appeared and filed application under Section 10 of the Ordinance for grant of unconditional leave to defend the suit. The said petition for leave to

appear and defend the suit was dismissed and resultantly the suit was decreed by the Banking Court, vide the impugned judgment and decree. Hence, this Appeal.

3. Learned counsel for the Appellants *inter alia* contended that the impugned judgment and decree is against the law and facts; that the Hon'ble Court has not passed the impugned judgment and decree in its true perspective; that the Hon'ble Court has not applied its judicial mind while passing the impugned judgment and decree; that the documents appended with the record have not been duly taken into consideration, as such there is misreading and non-reading of material available on record; that the impugned judgment and decree is sketchy in nature and has been passed in hasty manner; that the Hon'ble Court has failed to give any findings on the issues involved in the case and controversies between the parties. In support of his contentions, learned counsel has placed reliance on the case titled **Habib Bank Limited v. Messrs Medina Rice and Ice Mills, Sargodha through Proprietor and another** (2015 CLD 829), **Messrs Benqal Friends & Co. Dacca v. Messrs Gour Benode Shah & Co. etc.** (PLD 1969 Supreme Court 477), **Messrs Taxila Cotton Mills Ltd. and 10 others v. Allied Bank of Pakistan Ltd and 4 others** (2005 CLD 244), **Lallan Prasad v. Rahmat Ali & Anr.** (AIR 1967 SC 1322 = 1967 2 SCR 233).

4. On the other hand, learned counsel for the Respondent supported the impugned judgment and decree and submitted that the same has been passed strictly in accordance with law and cannot be interfered by this Court.

5. We have heard the arguments of the learned counsel for the parties and perused the record.

6. The main grievance of the Appellants is that the impugned judgment and decree has been passed without looking into the substance of the record as well as pleas raised by the Appellants. The minute examination of the record reveals that the Appellants on the one hand have denied all types of relationship with the Respondent Bank even they have refused to recognize the maintaining of current account but on the other hand they averred that partially disbursement of finance amount was made which has been paid by the Appellants. Meaning thereby, that the Appellants are blowing hot and cold in the same breath. Even the Appellants have not produced a single document in support of their claim that they have returned the partial disbursed amount which all shows that there is much self-contradiction in their stance. On the contrary, the Respondents through production of substantial documents have established on record that finance facility amounting to Rs.36 Million and Rs.22 Million was disbursed to the Appellants which was withdrew by the Appellants through cheques, as such the Hon'ble Court has rightly declined to grant the unconditional leave to the Appellants. Moreover, the impugned judgment and decree depicts that while deciding the matter the Hon'ble Court has taken into consideration all the grounds mentioned by the Appellants in the application for unconditional leave to defend the suit. The record further reflects that the Respondent has also appended with the suit all the relevant documents which were executed between the parties and that went unshaken, therefore, the

Hon'ble Court after appreciating all the documents have passed the impugned judgment and decree. Furthermore, the judgments relied upon by the learned counsel for the Appellants are distinguishable from the facts and circumstances of the case in hand and cannot be relied upon as each and every case has its own facts and circumstances.

7. In view of the above situation, we fully agree with the findings of the Hon'ble Court and do not find any illegality or perversity in the impugned judgment and decree which has been passed in consonance with the spirit of law, hence, does not call for interference by us.

8. As a sequel, this Appeal, being devoid of any merit, is hereby dismissed.

(Ayesha A. Malik)
Judge

(Jawad Hassan)
Judge